

“An unfair business practice occurs when the practice offends an established public policy or when the practice is immoral, unethical, oppressive, unscrupulous or substantially injurious to consumers.” (*Podolsky v. First Healthcare Corp.* (1996) 50 Cal. App. 4th, 632, 647.) The unfair standard is also intentionally broad, “thus allowing courts maximum discretion to prohibit new schemes to defraud.” (*Searle v. Wyndham Intl.* (2002) 102 Cal. App. 4th 1327, 1334.) “A business practice is ‘fraudulent’ within the meaning of section 17200 if it is “likely to deceive the public. [Citations.] It may be based on representations to the public which are untrue, and also those which may be accurate on some level, but will nonetheless tend to mislead or deceive.” (*Klein v. Chevron U.S.A., Inc.* (2012) 202 Cal. App. 4th 1342, 1380.) Although the facts must be pled with reasonable particularity, the standard is more lenient than the standard applied to common law fraud claims. (*Gutierrez supra*, 19 Cal. App. 5th at 1261.)

Here, Plaintiffs allege that Defendant committed unfair business practices by (1) failing to provide repair facilities to service vehicles to conform to the express warranties reasonably close to where Plaintiffs’ vehicle was sold; (2) failing to provide their authorized repair facilities service and repair literature to allow them to conform the vehicles to the express warranties; (3) failing to inform consumers of their warranty rights on their repair orders; (4) failing to pay their authorized repair facilities for work done under the express warranty; and (5) trying to coerce Plaintiffs and other members of the public to sign confidentiality clauses. (FAC, ¶¶26.) The fraud claims are based on Defendants’ alleged oral misrepresentations to deceive Plaintiffs to believe that they would benefit from the purchasing a vehicle under warranty. (Id at ¶¶33.)

While not entirely derivative of the breach of implied warranty claim, the UCL cause of action is not pled with the requisite specificity. It is not clear what was represented regarding the warranty and who made the misrepresentation or when. Likewise, the allegations of unfair practices are vague. SUSTAINED WITH LEAVE TO AMEND.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2503063	MARQUEZ VS DATE PALM PETROLEUM, INC'S	HEARING RE: MOTION TO COMPEL DEPOSITION OF PERSON MOST KNOWLEDGEABLE OF DATE PALM PETROLEUM, INC. BY FELIPE MARQUEZ

Tentative Ruling: No tentative ruling. Hearing will be conducted on Thursday, August 27, 2026 at 8:30 a.m. in Department PS2.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2505821	HERNANDEZ VS ERKIES FAMILY CORPORATION DBA ERKIES CORPORATION	NOTICE OF MOTION AND MOTION OF DEFENDANT, ERKIES FAMILY CORPORATION DBA ERKIES CORPORATION TO QUASH SERVICE OF PROCESS

Tentative Ruling: Denied.

Responding party to provide notice pursuant to CCP 1019.5.

This is an alleged wrongful termination suit filed February 2026.